

SUPPLIER AGREEMENT (In terms of the POPI Act, No.4 of 2013)

This agreement is entered into between:

<u>Sautech (Pty) Ltd</u>	[NAME OF SUPPLIER]
<u>2003/006814/07</u>	[REGISTRATION NUMBER]
<u>34 Stokroos Ave, Breaunanda</u>	[ADDRESS]
<u>Krugersdorp, 1739</u>	
<u>Chandre@sautech.net</u>	[EMAIL ADDRESS]

hereinafter referred to as “**the Supplier**”

and

ADVANCED HEALTH SA (PTY) LTD
Walker Creek Office Park, 90 Florence Ribeiro Avenue, Pretoria, 0002
hereinafter referred to as “**the Company**”

(collectively referred to as “**the Parties**”)

1. Definitions

- 1.1. “**Data Subject**” shall mean a person to whom Personal Information relates;
- 1.2. “**Personal Information**” shall mean personal information relating to a data subject who is a natural person and, where applicable, a juristic person as listed and defines under POPI;
- 1.3. “**POPI**” shall mean the Protection of Personal Information Act 4 of 2013; and
- 1.4. “**processing**” shall mean any operation or activity or any set of operations, whether or not by automatic means, concerning personal information, as defined under POPI.

2. Compliance with Applicable Laws

Parties warrant that it is in compliance with and undertake to, at all times comply with POPI and applicable laws when processing Personal Information in connection with this Agreement.

2.1. Consent

Each Party hereby consents to the Processing of its Personal Information, as defined under POPI, by the other only for purposes of fulfilling the terms of this Agreement and each undertake to only collect the other’s Personal Information directly from the disclosing Party, unless consented to otherwise in writing by the disclosing Party.

2.2. Categories of Personal Information and Purposes of Processing

- 2.2.1. Personal Information processed for purposes of this Agreement, may include but is not limited to, personal information shared as part of the implementation of this contract (e.g., names and identifying numbers/identity books or passports, contact information, and registration or other numbers, publications, interactions between the Company and the Supplier under this Agreement (e.g., emails/correspondence).
- 2.2.2. Such Personal Information shall not be in excess of what is required for the purposes of this Agreement, specifically related to the services rendered by the Supplier, namely:

Hosted Virtual Machine / VPN Connections [description of service]



2.2.3. The vendor / supplier may also inadvertently come into contact with personal information not within the scope of this Agreement. The Supplier undertakes to not process or collect such information in any manner whatsoever.

2.3. Third Party Disclosure of Personal Information

Each Party consents to the other to share Personal Information with:

- 2.3.1. its service providers that process Personal Information on its behalf and according to its instructions. Where personal information is processed for and on behalf of the Company, the Company shall enter into a written agreement with such third party ("Operator Agreement"), the conditions of which shall ensure that the third party must secure the integrity and confidentiality of Personal Information in its possession or under its control by taking appropriate, reasonable technical and organisational measures to prevent loss of, damage to or unauthorised, accidental destruction of Personal Information, unlawful access to or processing of the Personal Information as required by POPI;
- 2.3.2. other affiliated companies for purposes of fulfilling the terms of this Agreement, subject to the provisions of section 72 of POPI should the information be stored/housed outside of South African borders: any disclosure of Personal Information in terms of this clause to recipients outside the Republic of South Africa, shall be subject to such country's laws, or a written agreement with the recipient, or company policies that provide adequate levels of protection, which uphold the principles for reasonable processing of the Personal Information that are substantially similar to the conditions for the lawful processing of Personal Information as contained under POPI and the provisions of further transfer to third parties in a foreign country similar to those set out in section 72 of POPI.

2.4. Employees Notification and Training

The Parties may respectively have to disclose to each other, Personal Information of their employees, agents, officers and representatives, ("Employees"), who are involved in the execution of the terms this Agreement. This includes project managers, financial staff, assistants and the like. Each Party shall inform the affected Employee about processing of their Personal Information by the other, its affiliated companies and service providers for the purpose of this Agreement.

Parties will ensure that their employees are adequately trained on POPI and the protection and processing of Personal Information.

2.5. Retention Periods

The Personal Information related to this Agreement will be retained for the duration of this agreement and thereafter for as long as it is needed in terms of the Company's retention policy. Thereafter it be destroyed and/or deleted, unless it is required to be retained for longer by the law applicable to this Agreement or the type of information retained.

2.6. Security measures

The Parties undertake to implement and maintain appropriate, reasonable technical and organisational measures to secure the integrity and confidentiality of Personal Information and to prevent loss of, damage to or unauthorised, accidental destruction of Personal Information, unlawful access to or processing of the Personal Information.

2.7. Data Subject Rights

The Supplier, the Company and the Employees have a right, at any time to:

- 2.7.1. Notification when personal information is being collected, the type of information collected, for what purpose, whether the information is to be supplied voluntarily or is collected mandatory, and whether the information would be transferred to a third country and the protections afforded there;
- 2.7.2. Notified if there has been unlawful access or acquisition of his/her/its personal information;
- 2.7.3. Request a record of their Personal Information;
- 2.7.4. Request the correction, deletion and/or destruction of their Personal Information;

- 2.7.5. Object to the processing thereof;
- 2.7.6. Exercise the right to withdraw the consent to processing, if voluntarily given under this Agreement;
- 2.7.7. Not be subjected to unsolicited electronic communication, unless the person is a customer with whom the Responsible Party has a sales or service record, or the person has consented to the communication and the person has had an opportunity to object to the communication;
- 2.7.8. Not to be subjected to automated decision-making based on the personal information in contravention of section 71 of POPI;
- 2.7.9. Submit a complaint to the Information Regulator; and
- 2.7.10. Institute civil proceedings regarding an alleged interference with his/her/its personal information in terms of section 99 of POPI.

Any deletion and or destruction will not be possible if the law requires longer retention, it results in the inability of each party to fulfil their rights and obligations hereunder, or if it results in the unintended termination of this Agreement. Notification would also not be given in instances where it would detract from legal processes or the likes.

2.8. Information Office:

2.8.1. For the Company:

Information Officer: **Carina de Jongh**

Email: carina.dj@advancedhealth.co.za

Tel: (012) 346 5020

2.8.2. For the Supplier:

Information Officer: **Lindie Taljaard**

Email: lindie@sautech.net

Tel: [0117681790](tel:0117681790)

Website: www.sautech.net

A Data Subject wishing to exercise the rights set out under 2.7 above. may contact the Information Officer of the relevant Party on the above details. Data Subjects must complete requisite forms in order to exercise the aforementioned rights, such forms shall be found on the aforementioned website of the affected Party.

2.9 Access and authority levels pursuant to POPI Act

The following persons will have the access to, and/or have their personal information processed as described for the implementation of this Agreement:

For the Company:

Person whose information will be shared as part of this Agreement	Designation	Contact details to be used as part of this Agreement	Role in implementation of agreement
Carina de Jongh	Information Officer	Email address and work tel.	Group Legal Advisor

For the Supplier:

Person whose information will be shared as part of this Agreement	Designation	Contact details to be used as part of this Agreement	Role in implementation of agreement
Lindie Taljaard	Information Officer	Email and work tel.	Admin

Signed at Krugersdorp on this 18th day of November 202¹.



Authorised representative: **Supplier**

NAME: Lindie Taljaard

DESIGNATION: Admin

* Subject to services provided by Sautech and in conjunction with our own internal POPI policy

Signed at _____ on this _____ day of _____ 202_____.

Authorised representative: **Company**

NAME: Bibi Goss-Ross

DESIGNATION: Chief Operations Officer